NEXTREPORTING

PRIVACY NOTICE

Version 1.0

1. INTRODUCTION

ATEBIZ ("**ATEBIZ**", "**we**", "**our**" or the "**Company**") is committed to protecting the privacy and personal data of individuals who interact with our business, our websites, our Software-as-a-Service platform ("**NEXTREPORTING**"), our products and our professional services.

Respect for privacy is a fundamental component of our corporate governance and forms part of our commitment to transparency, accountability and responsible digital business practices.

This Privacy Notice explains how we collect, use, disclose, retain and otherwise process Personal Data when individuals visit our websites, communicate with us, request information, enter into contractual relationships, attend events, access NEXTREPORTING as authorised users or otherwise interact with us in a professional or commercial context.

We process Personal Data in accordance with Regulation (EU) 2016/679 ("**GDPR**"), applicable national data protection legislation, the ePrivacy framework and any other privacy legislation applicable to our activities.

This Privacy Notice should be read together with our Cookie Policy, Data Processing Agreement and any privacy information specifically provided in connection with particular products, services or processing activities.

2. WHO WE ARE

Unless otherwise indicated, the Controller responsible for the Personal Data described in this Privacy Notice is:

ATEBIZ
Registered Office:[
Company Registration Number:
Email: privacy@atebiz.com
Website: www.atebiz.com

Where required by applicable law, the Company has designated a Data Protection Officer or an equivalent privacy contact responsible for supervising compliance with applicable Data Protection Law.

Any questions concerning this Privacy Notice or the Processing of Personal Data may be addressed using the contact details set out above.

3. OUR ROLE WHEN PROCESSING PERSONAL DATA

Our role under Data Protection Law depends upon the context in which Personal Data is processed.

Where we collect Personal Data for our own business purposes, including customer relationship management, contractual administration, invoicing, marketing communications, supplier management, recruitment, regulatory compliance or operation of our websites, we generally act as **Controller**.

Where Personal Data is processed through the NEXTREPORTING platform exclusively on behalf of one of our customers, we generally act as **Processor**, processing Personal Data solely in accordance with the documented instructions of the relevant customer and the applicable Data Processing Agreement.

Accordingly, where you access NEXTREPORTING as an authorised user of one of our customers, that customer will normally determine the purposes and means of the Processing of your Personal Data.

If you wish to exercise your rights in relation to Personal Data processed within NEXTREPORTING on behalf of one of our customers, you should normally contact your organisation directly. We will provide reasonable assistance to our customers in responding to such requests where required under applicable Data Protection Law.

4. CATEGORIES OF PERSONAL DATA

The categories of Personal Data we Process depend upon the nature of our relationship with you.

Depending upon the circumstances, we may Process identification data, professional contact details, business information, employer information, user account details, authentication credentials, billing and payment information, correspondence, contractual documentation, technical identifiers, device information, connection logs, usage information, support requests, event registration details and any information voluntarily provided during communications with us.

Where strictly necessary for the provision of specific services, we may also Process financial information required for invoicing, payment verification or contractual administration.

We do not intentionally collect or require special categories of Personal Data within the meaning of Article 9 GDPR through our websites or ordinary commercial communications.

Individuals are requested not to provide sensitive Personal Data unless expressly requested or required for a specific lawful purpose.

5. HOW WE COLLECT PERSONAL DATA

We collect Personal Data directly from individuals when they contact us, complete forms available through our websites, request demonstrations of NEXTREPORTING, subscribe to newsletters, register for webinars or events, enter into contractual relationships, request customer support or otherwise communicate with us.

We also collect certain technical information automatically through our websites and online services, including information relating to devices, browsers, operating systems, IP addresses, security events and the use of our digital services.

Where permitted by law, we may also obtain limited business contact information from publicly available professional sources, business partners or publicly accessible corporate directories for legitimate business development purposes.

Whenever Personal Data is obtained indirectly, we take reasonable steps to provide the information required by applicable Data Protection Law unless a legal exemption applies.

6. PURPOSES OF PROCESSING

We Process Personal Data only where this is necessary for a legitimate and clearly identified purpose.

Depending upon the nature of our relationship with you, Personal Data may be Processed to establish and manage contractual relationships, provide access to NEXTREPORTING, administer customer accounts, authenticate authorised users, deliver technical support, process payments, manage subscriptions, organise demonstrations, provide Professional Services, communicate with customers and business partners, respond to enquiries, organise training sessions and events, improve our products and services, maintain the security of our information systems, prevent fraud, investigate security incidents, protect our legal rights and comply with applicable legal and regulatory obligations.

Where permitted by applicable law, we may also use Personal Data to communicate information concerning our products, services, publications, webinars, events and other business initiatives that may be relevant to existing or prospective customers.

We do not use Personal Data for purposes incompatible with those for which it was originally collected.

7. LEGAL BASES FOR PROCESSING

Our Processing activities are carried out only where supported by one or more lawful bases recognised under Article 6 GDPR.

Where Processing is necessary for the performance of a contract or to take steps at your request prior to entering into a contract, we rely upon Article 6(1)(b) GDPR.
Where Processing is necessary to comply with legal obligations applicable to our business, including accounting, taxation, anti-money laundering, corporate governance or regulatory compliance requirements, we rely upon Article 6.1.c) GDPR.

Where Processing is necessary for the purposes of our legitimate interests, including the operation and security of our business, customer relationship management, product improvement, fraud prevention, network security, defence of legal claims or business development, we rely upon Article 6.1.f) GDPR following an assessment designed to ensure that such interests are not overridden by your rights and freedoms.

Where consent is required by law, including for certain electronic marketing communications or the use of non-essential cookies, we rely upon Article 6.1.a) GDPR.

Where consent constitutes the legal basis for Processing, it may be withdrawn at any time without affecting the lawfulness of Processing carried out before its withdrawal.

8. LEGITIMATE INTERESTS

Where we rely upon Article 6.1.f) GDPR as the legal basis for Processing, we do so only after carefully assessing that our legitimate interests are not overridden by the interests, fundamental rights or freedoms of the individuals concerned.

Our legitimate interests may include operating and administering our business efficiently, providing and improving our products and services, maintaining customer relationships, ensuring network and information security, preventing

fraud and misuse, protecting our legal rights, managing contractual relationships, conducting internal reporting, responding to legal claims and communicating with existing business contacts regarding products and services that may reasonably be expected within the context of an existing commercial relationship.

Where appropriate, we conduct documented balancing assessments before relying upon legitimate interests as the legal basis for Processing.

9. RECIPIENTS OF PERSONAL DATA

We do not sell, rent or otherwise commercialise Personal Data.

Personal Data may be disclosed only where such disclosure is necessary for the purposes described in this Privacy Notice or where disclosure is required by applicable law.

Depending upon the circumstances, Personal Data may be shared with carefully selected providers of cloud infrastructure, hosting services, communication platforms, customer relationship management systems, cybersecurity services, payment providers, professional advisers, external auditors, insurers and other service providers supporting the operation of our business.

Where Personal Data is disclosed to service providers acting on our behalf, they shall Process such information exclusively in accordance with our documented instructions and under written agreements complying with Article 28 GDPR where applicable.

Personal Data may also be disclosed to competent judicial, regulatory, supervisory or law enforcement authorities where required by applicable law or where necessary for the establishment, exercise or defence of legal claims.

10. INTERNATIONAL DATA TRANSFERS

As a general principle, Personal Data is processed within the European Economic Area.

However, certain service providers supporting the operation of our business may Process Personal Data from jurisdictions located outside the European Economic Area.

Whenever Personal Data is transferred internationally, we ensure that such transfers comply with Chapter V of the GDPR and that an essentially equivalent level of protection is maintained.

Depending upon the circumstances, international transfers may rely upon an adequacy decision adopted by the European Commission pursuant to Article 45 GDPR; the Standard Contractual Clauses adopted by the European Commission pursuant to Article 46 GDPR; Binding Corporate Rules (BCR) approved by the competent supervisory authorities; approved codes of conduct or certification mechanisms where available; or any other lawful transfer mechanism recognised under applicable Data Protection Law.

Where the legal framework of the recipient country requires additional safeguards, we implement supplementary contractual, organisational and technical measures designed to ensure that transferred Personal Data continues to benefit from a level of protection essentially equivalent to that guaranteed within the European Union. Such supplementary measures may include encryption during transmission and storage, strict access management, contractual transparency obligations, data minimisation, pseudonymisation where appropriate, enhanced security monitoring and documented transfer risk assessments.

We periodically review international transfers in light of legislative developments, guidance issued by the European Data Protection Board, decisions of the Court of Justice of the European Union and applicable regulatory requirements.

Information regarding the safeguards applicable to specific international transfers may be requested using the contact details provided in this Privacy Notice.

11. BUSINESS TRANSACTIONS

As our business evolves, we may participate in corporate transactions including mergers, acquisitions, investments, corporate reorganisations, joint ventures, transfers of assets or similar business operations.

Where Personal Data forms part of the assets involved in such transactions, we shall ensure that appropriate confidentiality obligations and data protection safeguards continue to apply.

Any successor entity shall remain bound by obligations substantially equivalent to those described in this Privacy Notice unless individuals are otherwise informed in accordance with applicable law.

12. INFORMATION SECURITY AND ACCOUNTABILITY

We maintain a comprehensive privacy and information security governance framework designed to ensure compliance with applicable Data Protection Law and recognised industry practices.

Our privacy programme incorporates the principles of accountability, privacy by design, privacy by default, confidentiality, integrity, availability and continuous improvement.

Technical and organisational measures are selected through a risk-based methodology taking into account the nature of the Personal Data processed, the purposes of Processing and the risks presented to the rights and freedoms of individuals.

Our security programme includes governance controls, access management, authentication mechanisms, encryption, vulnerability management, secure software development, supplier risk management, monitoring, incident response, business continuity planning and periodic reviews of security effectiveness.

We regularly review our policies, procedures and technical safeguards in response to technological developments, emerging cybersecurity threats and changes in applicable legislation.

13. DATA RETENTION

We retain Personal Data only for so long as necessary to fulfil the purposes for which it was collected or to comply with applicable legal, contractual or regulatory obligations.

Retention periods vary depending upon the nature of the Processing, the applicable legal requirements and the operational needs of our business.

Where Personal Data is no longer required, it is securely deleted, anonymised or otherwise rendered permanently inaccessible unless continued retention is required by applicable law or is necessary for the establishment, exercise or defence of legal claims.

We periodically review retained Personal Data to ensure that it remains relevant, accurate and necessary for the purposes for which it is processed.

14. YOUR RIGHTS

Subject to applicable law, individuals may exercise the rights recognised under the GDPR, including the right to obtain confirmation as to whether Personal Data concerning them is being processed, to access such Personal Data, to request rectification of inaccurate information, to request erasure where applicable, to request restriction of Processing, to object to certain Processing activities and to receive Personal Data in a structured, commonly used and machine-readable format where the right to data portability applies.

Where Processing is based upon consent, consent may be withdrawn at any time without affecting the lawfulness of Processing carried out prior to its withdrawal. We may request reasonable evidence of identity before responding to requests in order to protect Personal Data against unauthorised disclosure.

Requests shall be handled within the time limits established by applicable Data Protection Law.

15. AUTOMATED DECISION-MAKING

We do not carry out automated decision-making producing legal effects or similarly significant effects within the meaning of Article 22 GDPR unless expressly notified to the relevant individuals and authorised by applicable law.

Analytical functionalities incorporated into NEXTREPORTING are intended to assist business users in interpreting information and do not replace human decision-making.

Any future implementation of artificial intelligence or automated analytical functionalities involving Personal Data shall be subject to appropriate governance, human oversight and compliance with applicable legal requirements.

16. DATA ACCURACY

Individuals are responsible for ensuring that the Personal Data provided to us is accurate, complete and kept reasonably up to date.

Where Personal Data becomes inaccurate or incomplete, we encourage individuals to notify us promptly so that appropriate corrections may be made.

17. MARKETING COMMUNICATIONS

Where permitted by applicable law, we may send information concerning our products, services, events, publications or business activities.

Electronic marketing communications shall be sent only where supported by an appropriate legal basis, including consent where required or the legitimate marketing exemption applicable to existing customer relationships.

Every marketing communication provides an appropriate mechanism enabling recipients to unsubscribe or object to future communications.

18. CHILDREN

Our products and services are intended exclusively for business and professional users.

We do not knowingly collect Personal Data relating to children.

If we become aware that Personal Data relating to a child has been collected without appropriate legal grounds, we shall take reasonable steps to delete such information without undue delay.

19. COMPLAINTS

If you have concerns regarding our Processing of your Personal Data, we encourage you to contact us in the first instance so that we may seek to resolve the matter promptly and transparently.

Without prejudice to any other administrative or judicial remedy, you also have the right to lodge a complaint with the competent supervisory authority in the Member State of your habitual residence, place of work or place of the alleged infringement.

20. CHANGES TO THIS PRIVACY NOTICE

We may amend this Privacy Notice from time to time in order to reflect changes in applicable legislation, regulatory guidance, judicial decisions, technological developments, our business operations or the Services we provide.

The most recent version shall always be published through the appropriate communication channels together with its effective date.

Where changes materially affect the way in which Personal Data is Processed, we shall provide appropriate notice and, where required by law, obtain renewed consent before such changes take effect.

21. CONTACT

Questions concerning this Privacy Notice or the Processing of Personal Data may be addressed to:
Privacy Office
XXX
Email: privacy@atebiz.com
Address:

Where appointed, our Data Protection Officer may also be contacted using the above details.